



CHAPTER 83.

An Act to make better provision as to the pensions, grants, and allowances made in respect of the present war to officers and men in the Naval and Military Service of His Majesty and their dependants, and the care of officers and men disabled in consequence of the present war, and for purposes connected therewith. A.D. 1915.

[10th November 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) For the purposes herein-after mentioned relating to pensions and grants and allowances made in respect of the present war to officers and men in the naval and military services of His Majesty and their wives, widows, children and other dependants, and the care of officers and men disabled in consequence of the present war there shall be constituted a Statutory Committee of the Royal Patriotic Fund Corporation (herein-after referred to as the Corporation) consisting of twenty-seven members, appointed as herein-after mentioned.

Establishment
of Statutory
Committee of
Royal Patriotic
Fund Cor-
poration.

(2) Of the said twenty-seven members—

twelve (of whom one shall be chairman and one vice-chairman and some shall be women and not less than two shall be representatives of labour) shall be appointed by His Majesty ;

one shall be appointed by the Treasury ;

one shall be appointed by the Admiralty ;

one shall be appointed by the Army Council ;

one shall be appointed by the National Health Insurance Joint Committee ;

one shall be appointed by the Local Government Board ;

one shall be appointed by the Local Government Board for Scotland ;

Planning

Ireland: - - - - -

Association ;

six (of whom some shall be women) shall be appointed by the General Council of the Corporation.

4) Four of the members appointed by the General Council

4) There may be paid to the chairman or vice-chairman.

5) All other expenses of the Committee (including such

5) Seven members of the Statutory Committee shall con-

The Statutory Committee may appoint sub-committees con-

subject to the foregoing provisions of this subsection, the

7) The term of office of a member of the Statutory Com

provided that if a member required to be appointed from

8) The Statutory Committee may with the consent of the

2.—(1) For the purpose of assisting the Statutory Committee in the execution of their duties, a local committee shall be established for every county and county borough, and for every borough or urban district having a population of not less than fifty thousand the council of which so desires, and for any other borough or urban district for which the Statutory Committee, on the application of the council thereof, considers it desirable that, having regard to the special circumstances of the case, a separate local committee should be established.

A.D. 1915.
Establishment
of local com-
mittees.

(2) The constitution of a local committee shall be such as may be determined by a scheme framed by the council of the county or borough or urban district and approved by the Statutory Committee; so, however, that every such scheme shall provide—

- (a) for the appointment by the council of the county or borough or urban district of at least a majority of the local committee; but the members so appointed by the council need not be members of the council; and
- (b) for the appointment by the local committee from amongst their own number of a chairman; and
- (c) for the inclusion of women and representatives of labour among the members of the local committee.

(3) If within such time, not being less than one month, as may be allowed by the Statutory Committee, the council does not frame a scheme or such a scheme as the Statutory Committee approve, the Statutory Committee may themselves frame a scheme which shall have a like effect as if it were framed by the council and approved by the Statutory Committee.

(4) The scheme, in the case of a county, may provide for the division of the county into districts and the appointment of a sub-committee for each such district, which sub-committees are herein-after referred to as district committees, so, however, that every borough and urban district within the county having a population of not less than twenty thousand, and in the case of the county of London, the city of London and each metropolitan borough, shall be a separate district, and that the council thereof shall have the right of appointing at least a majority of the members of the district committee, and in the appointment of every such district committee some of the members appointed shall be women.

Such a district committee may, but need not, contain any members of the local committee.

(5) A scheme regulating the constitution of any such local committee or district committee as aforesaid shall provide for the substantial representation on the local or district committee of persons who have within the area either as members of the Soldiers and Sailors Families Association, or the Soldiers and Sailors Help Society, or otherwise, been performing functions

A.D. 1915. similar to those to be performed by local committees under this Act.

(6) For facilitating the preparation of such schemes as aforesaid the Statutory Committee shall as soon as practicable prepare and issue forms of model schemes.

(7) A local committee or district committee may also appoint sub-committees, either for any special purposes or for any special parts of their area, and any such committee may consist either wholly or partly of members of the local or district committee, and in particular may appoint a special committee which shall include representatives of employers and of labour for the care of disabled officers and men.

(8) Any two or more local committees may combine together for the joint exercise of any of their powers and duties under this Act, and may for that purpose appoint a joint committee, and may agree as to the proportions in which the several local committees represented on the joint committee are to contribute towards the expenses of such joint committee.

(9) A local committee may delegate to any district committee, and a local committee or district committee may delegate to any sub-committee, whether appointed for any particular locality or not, any of its powers and duties under this Act, whether with or without any restrictions or conditions as it may think fit.

(10) Any expenses of a local committee (except so far as they may be paid by the Statutory Committee) shall be paid out of funds at the disposal of the local committee.

(11) In the application of this section to Scotland "county borough" means a royal, parliamentary, or police burgh with a population of not less than fifty thousand, and "borough" or "urban district" means a royal, parliamentary, or police burgh.

Functions of
Statutory
Committee.

3.—(1) The functions of the Statutory Committee shall be—

- (a) to decide any question of fact on the determination of which the amount of a pension or grant payable out of public funds to a dependant, other than a widow or child, may depend ;
- (b) to frame regulations for supplementary grants in cases where, owing to the exceptional circumstances of the case, the pension or grant or separation allowance payable out of public funds seems to the Committee to be inadequate ;
- (c) out of funds at their disposal, to supplement pensions and grants and separation allowances payable out of public funds, so, however, that no such supplementary grant shall be made except in accordance with such regulations as aforesaid ;
- (d) out of funds at their disposal, to make grants or allowances in cases where no separation allowances or pensions are payable out of public funds ;

- (e) out of funds at their disposal, to make advances on account of pensions or grants or separation allowances due to any persons, out of public funds during any interval before the payment thereof actually commences, or during which the payment thereof has been accidentally interrupted ; A.D. 1915.
- (f) to decide, in any particular case, whether, as respects a wife, widow, child, or other dependant, any pension or grant or separation allowance and, as respects an officer or man, any supplementary grant has, under the regulations subject to which it was granted, become forfeited ;
- (g) to decide, as between two or more claimants to any pension or grant or separation allowance, which, if any, of the claimants is entitled thereto ;
- (h) to determine any other questions in relation to pensions or grants or separation allowances which may be referred to the Committee by the Admiralty or Army Council ;
- (i) to administer any funds which may be placed at the disposal of the Committee by the Corporation or by local committees or by any society or other organisation having funds applicable to the making of grants of the nature of those which the Committee are authorised to make, or otherwise ;
- (j) to make provision for the care of disabled officers and men after they have left the service, including provision for their health, training, and employment ;
- (k) to make grants in special cases for the purpose of enabling widows, children, and other dependants of deceased officers and men to obtain training and employment ;

(2) The Statutory Committee may refer to any local committee for their consideration and advice any question pending before the Statutory Committee, and may request any local committee to collect and furnish them with any information they may require with respect to any matter, and may delegate to any local committee the distribution within their area of any grants made by the Statutory Committee, and may pay or contribute towards the payment of the expenses incurred by the local committee in respect of any of the matters aforesaid.

(3) For the purpose of making provision for the care of disabled officers and men, the Statutory Committee shall appoint a special sub-committee which shall include representatives of employers and of labour.

(4) Paragraphs (8), (9), (10), and (11), of the First Schedule to the Patriotic Fund Reorganisation Act, 1903 (relating to funds, accounts and audit) shall apply in respect of the Statutory Committee in like manner as they apply in respect of the Corporation. ^{3 Edw. 7. c. 20.}

A.D. 1915. (5) The Statutory Committee shall in each year make a report of their proceedings to His Majesty.

(6) Pending the appointment of a local committee or sub-committee for any area, the Statutory Committee may make arrangements with any organisation for the performance within that area by the organisation of the functions of the local committee mentioned in paragraphs (a), (b), and (c) of section four of this Act.

(7) For the purpose of enabling the Statutory Committee to discharge their functions the Admiralty and the Army Council shall on request supply the Statutory Committee with such particulars as they may require with regard to any payments made by them to any officer, sailor, marine, soldier, widow, child, or dependant, and the Statutory Committee may on request duly communicate all such and similar information to any charitable body legitimately interested in the case of any officer, sailor, marine, soldier, widow, child, or dependant.

Functions of
local com-
mittees.

4. The functions of local committees shall be—

- (a) to inquire into any case referred to them by the Statutory Committee, and to report to the Statutory Committee their advice and recommendations with respect thereto ;
- (b) to collect and furnish to the Statutory Committee such information as may be required by the Statutory Committee with respect to any matter, and to furnish applicants for pensions or grants or separation allowances with information and advice, especially in the event of payment being unduly delayed ;
- (c) to distribute any supplementary grants made by the Statutory Committee, the distribution of which has been delegated to the local committee ;
- (d) out of any funds at their disposal for the purpose, to make contributions towards the funds administered by the Statutory Committee, to increase pensions, grants, and separation allowances and to make grants or allowances where no pensions, grants, or separation allowances are otherwise payable ;
- (e) out of funds at their disposal, to make advances on account of pensions or grants or separation allowances due to any persons out of public funds during any interval before the payment thereof actually commences, or during which the payment thereof has been accidentally interrupted ;
- (f) to make provision, subject to the approval of the Statutory Committee, for the care of disabled officers and men after they have left the service,

including provision for their health, training, and employment; A.D. 1915.

- (g) to solicit and receive from the public contributions towards any such purposes as aforesaid.

5. If any person, with a view to obtaining any such pension or grant or allowance as aforesaid, makes or uses, or has before the passing of this Act made or used, any declaration, application, or other written statement knowing the same to be false, he shall be guilty of an offence, and shall be liable on conviction under the Summary Jurisdiction Acts to a fine not exceeding five pounds, and for the purpose of proceedings in respect of any such offence the offence shall be deemed to have been committed either at the place where it was actually committed or at the place where the offender may happen to be, and any declaration on an appropriate official form bearing a stamp purporting to be the office stamp of the Admiralty or Army Council, or any sub-department thereof, with a date subsequent to that on which the declaration purports to have been signed, shall be evidence that the declaration has been used with such view as aforesaid unless the contrary is proved.

Summary penalty for false declaration.

6.—(1) Any lord mayor or mayor, lord provost or provost, who is as such a member of the Corporation may, if he is unable or unwilling to act as a member thereof, appoint some other person in his place to be a member of the Corporation; and any person so appointed shall hold office so long as the person by whom he is appointed holds his office as lord mayor, mayor, lord provost or provost.

Provisions as to Corporation.

(2) In addition to the persons whom the general council of the Corporation may co-opt under the Patriotic Fund (Reorganisation) Act, 1903, the council may co-opt as members thereof any number (not exceeding thirteen) of persons having special experience in work of the character to be performed by the Corporation; but in exercising this power of co-option the council shall include some women as well as men amongst the members so co-opted.

(3) Every member of the Statutory Committee appointed under this Act shall, by virtue of his office as member of that Committee, be a member of the Corporation; but shall not as such be entitled to act or vote in respect of any question arising before the Corporation as regards matters dealt with by the Corporation independently of this Act.

(4) The purposes of this Act shall be included amongst the purposes for which the Corporation may solicit and receive contributions from the public and donations of property.

(5) Save as otherwise expressly provided, nothing in this Act shall affect the constitution or powers and duties of the Corporation.

[CH. 83.] *Naval and Military War Pensions, [5 & 6 GEO. 5.]*
 &c., Act, 1915.

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